



CHAPTER cxi.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to Dublin (two) A.D. 1912.
Dungarvan the Rural Districts of Belfast Carlow and
Larne and the Taghmaconnell Joint Burial Board.

[7th August 1912.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as "the Local Government Board") have made the Provisional Orders set out in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1907:

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to those Orders:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:--

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The urban authorities mentioned in the Orders relating to Dublin and Dungarvan hereby confirmed shall not under the powers of those Orders purchase or acquire in any urban district any house which on the fifteenth day of December last was occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board any house which was not so occupied on the said fifteenth day of December but has been or shall be subsequently so occupied. Restriction of power to take houses of working class.

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If either of the said authorities acquire or appropriate any house or houses for the purposes of any Order relating to their district and hereby confirmed in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 1) Act 1912.

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SCHEDULE.

A.D. 1912.

CITY OF DUBLIN.

*Provisional Order to enable the Corporation of Dublin
to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

Dublin.

WHEREAS the Right Honourable the Lord Mayor Aldermen and Burgesses of Dublin acting by the town council (in this Order referred to as "the Corporation") as the urban sanitary authority for the city of Dublin require to purchase and take the lands described in the schedule hereto for the purpose of widening and improving a street known as Grattan Crescent:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of any other power enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

41 & 42 Vict.
c. 52.

1. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of land otherwise than by agreement or any of them.

59 & 60 Vict.
c. 54.

2. The costs and expenses of the Corporation and of the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the Corporation as part of their expenses under the Public Health (Ireland) Acts 1878 to 1907.

3. This Order may be cited as the Dublin (Grattan Crescent) Order 1912.

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Dublin.

SCHEDULE.

Parish of ST. JUDE and City of DUBLIN.

Refer- ence to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Plot of ground con- taining 196 square yards.	Representatives of Arthur Guinness deceased.	Patrick Munroe -	Patrick Munroe.
2	Plot of ground con- taining 68 $\frac{2}{3}$ square yards.	Ditto - -	James McCann John Wallis	Ellen Kelly.
3	Plot of ground con- taining 41 square yards.	Ditto - -	James Byrne. James McCann -	James McCann.

Given under our seal of office this twenty-ninth day of March in the
year of our Lord one thousand nine hundred and twelve.

(L.S.)

(Signed) H. A. ROBINSON.

CITY OF DUBLIN.

*Dublin. Provisional Order to enable the Corporation of Dublin to put
in force the Compulsory Clauses of the Lands Clauses Acts.*

WHEREAS the Right Honourable the Lord Mayor Aldermen and
Burgesses of Dublin acting by the town council (in this Order referred
to as "the Corporation") as the urban sanitary authority for the city
of Dublin require to purchase and take the lands described in the
schedule hereto for the purpose of widening and improving a street
known as Philipsburgh Avenue:

Now therefore We the Local Government Board for Ireland in
41 & 42 Vict. pursuance of the powers given to Us by section 203 of the Public
c. 52. Health (Ireland) Act 1878 and of any other power enabling Us in
that behalf do hereby order that from and after the date of the
Act confirming this Order the following provisions shall have effect
namely:—

1. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto and for the
purpose aforesaid the powers of the Lands Clauses Acts as amended
59 & 60 Vict. by section 8 of the Public Health (Ireland) Act 1896 with respect to
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the purchase and taking of lands otherwise than by agreement or any of them. A.D. 1912.
Dublin.

2. The costs and expenses of the Corporation and of the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the Corporation as part of their expenses under the Public Health (Ireland) Acts 1878 to 1907.

3. This Order may be cited as the Dublin (Philipsburgh Avenue) Order 1912.

SCHEDULE.

Parish of CLONTURK and City of DUBLIN.

Refer- ence to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Plot of ground containing 17 square yards.	The Misses Rockford and Mrs. Henley.	Mrs. Susan Foulkes.	Mrs. Susan Foulkes.
2	Plot of ground containing 86 $\frac{2}{3}$ square yards.	Mrs. Julia Campbell	- - -	Mrs. Julia Campbell.
3	Plot of ground containing 115 $\frac{2}{3}$ square yards.	Elizabeth M. E. Creagh Richard P. Creagh Wm. Creagh acting on behalf of Thos. S. T. Creagh a Minor Lt.-Col. John Creagh Jr. and James Creagh Mrs. Margaret H. Metcalfe Charles H. Chaytor Lt.-Col. Creagh Jr. John C. Phillips Susan Reilly Frances Reilly Adarine Reilly Mary Reilly Bridget Reilly Louisa Reilly Kathleen Reilly Florence Reilly Mrs. Frances Reilly Wm. E. Burdge Mrs. Lydia Phillips Thos. W. Greene An- thony R. Carroll Irish Civil Service Building Society Rev. M. E. Bissett Lady Holmes.	James Stafford	James Stafford.
4	Plot of ground and lodge thereon con- taining 262 $\frac{2}{3}$ square yards.	Same - - -	Thos. Fitz- patrick.	Thos. Fitz- patrick.

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 —
 Dublin.

Refer- ence to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
5	Plot of ground containing $12\frac{1}{2}$ square yards.	James Stafford - -	- - -	William Brazier.
6	Plot of ground containing 11 square yards.	Elizabeth M. E. Creagh Richard P. Creagh Wil- liam Creagh acting on behalf of Thos. S. T. Creagh a Minor Lt.-Col. John Creagh Jr. and James Creagh Mrs. Mar- garet H. Metcalfe Charles H. Chaytor Lt.-Col. Creagh Jr. John C. Phillips Susan Reilly Frances Reilly Adarine Reilly Mary Reilly Bridget Reilly Louisa Reilly Kathleen Reilly Florence Reilly Mrs. Frances Reilly Wm. E. Burdge Mrs. Lydia Phillips Thos. W. Greene An- thony R. Carroll Irish Civil Service Building Society Rev. M. E. Bissett Lady Holmes.	George Demp- sey.	—
7	Plot of ground containing 8 square yards.	Mrs. Edith A. Moses -	Patrick and Mary Walsh.	Patrick and Mary Walsh.
8	Plot of ground containing $7\frac{2}{3}$ square yards.	James Walsh - -	- - -	James Raven.
9	Plot of ground containing 5 square yards.	Elizabeth M. E. Creagh Richard P. Creagh William Creagh acting on behalf of Thos S. T. Creagh a Minor Lt.-Col. John Creagh Jr. and James Creagh Mrs. Margaret H. Metcalfe, Chas. H. Chaytor Lt.-Col. Creagh Jr. John C. Phillips Susan Reilly Frances Reilly Adarine Reilly Mary Reilly Bridget Reilly Louisa Reilly Kathleen Reilly Florence Reilly Mrs. Frances Reilly Wm. E. Burdge Mrs. Lydia Phillips Thos. W. Greene Anthony R. Carroll Irish Civil Ser- vice Building Society Rev. M. E. Bissett Lady Holmes.	John Scally -	John Scally.

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Refer- ence to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
10	Plot of ground containing 2 $\frac{2}{3}$ square yards.	Representatives of Joanna Flood deceased.	Peter Byrne -	Peter Byrne.

A.D. 1912.
 Dublin.

Given under our seal of office this first day of April in the year
 of our Lord One thousand nine hundred and twelve.

(L.S.)

(Signed) H. A. ROBINSON.

URBAN DISTRICT OF DUNGARVAN.

Provisional Order to enable the Council of the Urban District of Dungarvan to put in force the Compulsory Clauses of the Lands Clauses Acts. Dungarvan.

WHEREAS the urban district council of Dungarvan (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a system of sewerage for their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

41 & 42 Vict.
 c. 52.

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with reference to the purchase and taking of lands otherwise than by agreement or any of them.

59 & 60 Vict.
 c. 54.

2. The district council shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the district council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals If any

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Dungarvan. this Article the Board of Trade may abate and remove the same and
restore the site thereof to its former condition at the costs and charges
of the district council and the amount of such costs and charges shall
be a debt due from the district council to the Crown and shall be
recoverable as a Crown debt or summarily.

3. Nothing in this Order affects prejudicially any estate right
power privilege or exemption of the Crown and in particular nothing
herein contained authorises the district council to take use or in any
manner interfere with any portion of the shore or bed of the sea or
of any river channel creek bay or estuary or any land hereditaments
subjects or rights of whatsoever description belonging to His Majesty
in right of His Crown and under the management of the Commissioners
of Woods or of the Board of Trade respectively without the consent
in writing of the Commissioners of Woods or the Board of Trade as
the case may be on behalf of His Majesty first had and obtained for
that purpose (which consent the said Commissioners and Board are
hereby respectively authorised to give).

4. The costs and expenses of the district council and the Local
Government Board for Ireland incurred in respect of the application
for preparation making and confirmation of this Order shall be paid
by the district council out of the rate applicable by that council to
defray the expenses incurred by them in the execution of the Public
Health (Ireland) Acts 1878 to 1907.

5. This Order may be cited as the Dungarvan Sewerage Order
1912.

SCHEDULE.

URBAN DISTRICT OF DUNGARVAN.

COUNTY OF WATERFORD.

Townland of ABBEYSIDE—Parish of DUNGARVAN.

Refer- ence to deposited Plan.	Description of Land.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Lands containing 1 acre.	The Misses Quinn.	Representatives of Edward Quinn.	Thomas Ryan.

Given under our seal of office this twenty-ninth day of March in the
year of our Lord one thousand nine hundred and twelve.

(L.S.)

(Signed) H. A. ROBINSON.

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RURAL DISTRICT OF BELFAST.

A.D. 1912.

*Provisional Order to enable the Council of the Rural District
of Belfast to put in force the Compulsory Clauses
of the Lands Clauses Acts.* Belfast.

WHEREAS the council of the rural district of Belfast (in this Order referred to as "the district council") being the burial board of the district require to purchase and take the lands and easement described in the schedule hereto for the purpose of enlarging the Carnmoney Burial Ground in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The district council acting as the burial board of the district shall be empowered to put in force with reference to the lands and easement described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

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c. 52.
59 & 60 Vict.
c. 54.

2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Antrim in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

61 & 62 Vict.
c. 37.

3. This Order may be cited as the Carnmoney Burial Ground Order 1912.

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A.D. 1912.

Belfast.

SCHEDULE.

RURAL DISTRICT OF BELFAST.

COUNTY OF ANTRIM.

Townland of DUNANNEY—Parish of CARNMONEY.

Refer- ence to deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
2	Right-of-way over ground of Bel- fast Rural Dis- trict Council containing 15½ perches.	Belfast Rural District Council.		Belfast Rural District Coun- cil John Smith.
3A	Field containing 3 acres and 6 perches.	Earl of Shaftes- bury H. D. M. Barton and another Trus- tees of Lieut.- General Edward Guy Selby Smith.	H. D. M. Barton and another Trustees of Lieut.-General Edward Guy Selby Smith.	John Smith.
3B	Part of field con- taining 3 acres 3 roods and 18 perches.	Same	Same	Same.

Given under our seal of office this twentieth day of March in the
year of our Lord one thousand nine hundred and twelve.

(L.S.)

(Signed) H. A. ROBINSON.

RURAL DISTRICT OF CARLOW.

*Carlow. Provisional Order to enable the Council of the Rural District
of Carlow to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

WHEREAS the council of the rural district of Carlow (in this Order
referred to as "the district council") require to purchase and take
the lands water and rights described in the schedule hereto for the

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purpose of improving the supply of water to the town and neighbourhood of Bagenalstown in their district : A.D. 1912,
Carlow.

Now, therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :— 41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with reference to the lands water and rights described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them. 59 & 60 Vict.
c. 54.

2. Any arbitrator appointed for the purposes of this Order may on the application of the district council award the provision of special supplies of water either in addition to or in substitution for other compensation.

3. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands water and rights described in the schedule hereto.

4. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Carlow in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council. 61 & 62 Vict.
c. 37.

5. This Order may be cited as the Bagenalstown Waterworks Order 1912.

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A.D. 1912.

Carlow.

SCHEDULE.

RURAL DISTRICT OF CARLOW.

COUNTY OF CARLOW.

Townland of KILLCARRIG—Parish of DUNLECKNEY.

Refer- ence to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Land containing 1 acre 2 roods and 30 perches and right to take water from springs thereon.	Mrs. Anne Henrietta Vesey.	James Aughney	James Aughney.
2	Land containing 1 rood and 10 perches.	Same - -	Same - -	Same.

Given under our seal of office this fourth day of April in the year
of our Lord one thousand nine hundred and twelve.

(L.S.)

(Signed) H. A. ROBINSON.

RURAL DISTRICT OF LARNE.

Larne.

*Provisional Order to enable the Council of the Rural District
of Larne to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

WHEREAS the council of the rural district of Larne (in this
Order referred to as "the district council") require to purchase and
take the lands water and rights described in the schedule hereto for
the purpose of improving the supply of water to the town and neigh-
bourhood of Carnlough in their district:

Now therefore We the Local Government Board for Ireland in
pursuance of the powers given to Us by section 203 of the Public
Health (Ireland) Act 1878 and of all other powers enabling Us in
that behalf do hereby order that from and after the date of the
Act confirming this Order the following provisions shall have effect
namely:—

41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with
reference to the lands water and rights described in the schedule hereto

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and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

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Larne.

59 & 60 Vict.
c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands water and rights described in the schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Antrim in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

61 & 62 Vict.
c. 37.

4. This Order may be cited as the Carnlough Waterworks Order 1912.

SCHEDULE.

RURAL DISTRICT OF LARNE.

COUNTY OF ANTRIM.

Townland of LEMNALARY—Parish of ARDCLINIS.

Refer- ence to deposited Plan.	Description of Land.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Land and water containing 25 perches and the right to take and convey water.	Field - Marshal Sir George White V.C.	- - -	John McGavock.

Given under our seal of office this eighth day of March in the year of our Lord one thousand nine hundred and twelve.

(L.S.)

(Signed) H. A. ROBINSON.

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TAGHMACONNELL JOINT BURIAL BOARD.

*Taghma-
connell.*

*Provisional Order forming a united district under section 12
of the Public Health (Ireland) Act 1878.*

WHEREAS the council of the rural district of Athlone No. 2 and the council of the rural district of Ballinasloe No. 2 (in this Order referred to as "district councils") are the sanitary authorities for their respective districts :

41 & 42 Vict.
c. 52.

Now therefore We the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") in pursuance of the powers given to Us by section 12 of the Public Health (Ireland) Act 1878 and of any other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

Formation
of united
district.

1. The rural district of Athlone No. 2 and the rural district of Ballinasloe No. 2 shall be formed into a united district to be called "The Taghmaconnell Joint Burial Board District" for the purpose of providing a new burial ground for Taghmaconnell and other localities within the united district and of maintaining and managing the burial ground when provided.

Constitution
of governing
body.

2. The governing body of the united district shall be a joint board consisting of twelve members of whom eight shall be elected by the council of the rural district of Athlone No. 2 from amongst the members of their body and four shall be elected by the council of the rural district of Ballinasloe No. 2 from amongst the members of their body.

Disqualifica-
tion.

3. Such of the provisions of Article 12 of the schedule to the Local Government (Application of Enactments) Order 1898 as relate to members of district councils shall with the necessary modifications apply to members of the joint board.

First
election.

4. The first election of members of the joint board shall in the case of each district council take place at a duly convened meeting of the council held within three months after the date of the Act confirming this Order or within such further time as the Local Government Board may allow.

Notification to
Local Govern-
ment Board of
members first
elected.

5. The clerk of each district council shall within seven days after the first election notify to the Local Government Board in writing the name address and occupation of each of the persons elected by the council as a member of the joint board.

Annual
election.

6. After the first election an annual election of members of the joint board shall take place in the case of each district council at the

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meeting of the council held next after the first day of April in each year or at such other meeting as the Local Government Board may appoint.

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*Taghma-
connell.*

Continuance
in office.

7. Each member of the joint board shall (unless he previously dies or resigns or becomes disqualified or vacates his seat for absence) continue in office until the next annual election of members of the joint board by the district council by whom he was elected and shall then retire but may be re-elected if otherwise qualified.

8. On a casual vacancy occurring on the joint board by reason of the death resignation disqualification or absence of a member the vacancy shall be filled by the district council by whom the vacating member was elected electing a new member in his place at a meeting of the council to be held within one month after the vacancy has occurred or within such further time as the Local Government Board may allow and the member so elected shall hold office until the time when the member in whose place he was elected would have regularly gone out of office and shall then retire but may be re-elected if otherwise qualified.

Casual
vacancies.

The clerk of the council shall give seven days' notice in writing of any such meeting to each member of the council and after the election shall forthwith notify in writing to the clerk of the joint board the name address and occupation of the person elected.

9. Subject to the express provisions in that behalf contained in this Order the business at elections of members of the joint board shall be conducted and all questions shall be put and decided in the same manner as other business is conducted and other questions are put and decided at the meetings of the district councils.

Proceedings
at elections.

10. The joint board shall be a body corporate by the name of "The Taghmaconnell Joint Burial Board" and shall have perpetual succession and a common seal with power to acquire and hold lands for the purposes for which the united district is formed as aforesaid.

Incorporation of joint
burial board.

11. From and after the completion of the first election of members in pursuance of this Order the joint board shall as respects the united district and for the purposes aforesaid have all the powers and perform all the duties conferred and imposed on a burial board by the Public Health (Ireland) Acts 1878 to 1907.

Powers and
duties of
joint board.

12. The expenses which may be incurred by the joint board in the execution of this Order shall be defrayed out of a common fund to be contributed by the district councils in the proportions following that is to say two-thirds thereof shall be contributed by the Athlone No. 2 Rural District Council and the remaining third thereof shall be contributed by the Ballinasloe No. 2 Rural District Council The contribution of each district council shall be included by the council

Expenses of
joint board.

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Payment of
contributions
to joint
board.

in their annual estimate and in their demand to be forwarded to the county council in accordance with section 51 of the Local Government (Ireland) Act 1898.

13. On or before the fifteenth day of December in each year the joint board shall send to the district councils an estimate and demand stating the sums required for the time being to be contributed by the district councils and requiring the district councils within a time to be mentioned in the estimate and demand to pay the amounts of their respective contributions to the joint board and thereupon the district councils respectively shall take the proceedings necessary to obtain the amount of their respective contributions and pay the same to the joint board in accordance with the terms of the estimate and demand.

Meetings of
joint board.

14.—(1) The first meeting of the joint board shall be held at such time and place as the Local Government Board may fix.

(2) A meeting of the joint board shall be held in every year after the year nineteen hundred and twelve on the first Saturday following the day on which the election of members of the joint board has been completed.

(3) Subject to the foregoing provisions of this Article the joint board shall meet at least once in every month on some day to be fixed at the last preceding meeting of the said board and if no such day is fixed then on the first Saturday in every month.

Chairman
and vice-
chairman of
joint board.

15. At the first meeting and subsequently at the meeting held next after the completion of the election of members of the joint board in each year the board shall appoint one of their members chairman and another member vice-chairman of the joint board. Such chairman and vice-chairman shall hold office until the next annual appointment of a chairman and vice-chairman. Provided that in the event of such chairman or vice-chairman dying resigning or ceasing to be a member of the joint board the joint board at the next meeting after such vacancy has taken place shall appoint another member of the joint board to fill the vacancy.

Conduct of
business at
meetings of
joint board.

16. At all meetings of the joint board the chairman or in his absence the vice-chairman shall preside and if at the commencement of any meeting the chairman and vice-chairman are both absent the members of the board present shall elect one of their number to preside at such meeting until the chairman or vice-chairman takes the chair.

Questions to
be decided by
a majority of
votes.

17. Every question at any meeting of the joint board consisting of more than three members shall be determined by a majority of the votes of the members present and in any case in which there is an equality of votes on any question that question shall be deemed to be lost. Provided that where there is an equality of votes at the

[2 & 3 GEO. 5.] *Local Government Board (Ireland)* [Ch. cxi.]
Provisional Orders Confirmation (No. 1) Act, 1912.

election of chairman or vice-chairman or the chairman of a meeting it shall be determined by lot which of the persons receiving an equal number of votes shall be chairman or vice-chairman or the chairman of the meeting as the case may be. A.D. 1912.
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Taghma-
connell,

18. The chairman presiding at any meeting of the joint board shall be entitled to give one vote on each question submitted to the joint board but he shall not under any circumstances be entitled to any additional or casting vote. Vote of chairman.

19. No act at any meeting of the joint board shall be valid unless three members at least are present and if no greater number of members be present unless all of them concur therein. Quorum of joint board.

20. Any sums borrowed by the joint board under the provisions of the Public Health (Ireland) Act 1878 for the purposes of their constitution shall not affect or reduce the amount which either district council may borrow under that Act. Saving of borrowing powers of councils.

21. The accounts of the joint board shall be separately kept and shall be audited by an auditor of poor law unions designated by the Local Government Board and all the enactments which relate or apply to the audit of the accounts of rural district councils (including the provisions of those enactments which impose penalties or provide for the recovery or payment of money whether in respect of auditors salaries or otherwise) and all orders made under these enactments shall apply to the audit of the accounts of the joint board in like manner as if the board were a rural district council. Accounts and audit.

22. All costs and expenses incurred by the district councils or the Local Government Board in relation to the application for preparation making and confirmation of this Order shall be deemed to be and be defrayed as expenses incurred by the joint board in the execution of this Order and where incurred by the Local Government Board shall be paid by the joint board to the Local Government Board. Costs of Order.

23. This Order may be cited as the Taghmaconnell Joint Burial Board Order 1912. Citation.

Given under our seal of office this third day of February in the year of our Lord one thousand nine hundred and twelve.

(L.S.)

(Signed) EDMUND BOURKE.

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